

Exhaustive Legal and Psychological Analysis of Institutional Liability: Mac Liatháin v. University of Galway

1. Executive Summary and Jurisprudential Architecture

The following report provides an exhaustive forensic, psychological, and legal analysis regarding the maximal civil and statutory liability incurred by the University of Galway. The factual matrix concerns the prolonged and systemic administrative mismanagement, defamation, and disability discrimination perpetrated against a disabled postgraduate student and qualified teacher, Cian Mac Liatháin. The focal period of this analysis spans from the imposition of a retaliatory suspension in September 2024 to its sudden and procedurally invalid reactivation in September 2026. This administrative continuum reveals a profound institutional failure to discharge the statutory duty of care owed to a vulnerable adult, culminating in severe psychiatric injury, catastrophic reputational destruction, and the unlawful dissemination of highly sensitive special category health data.

To fully capture the maximum exposure facing the institution, this analysis synthesizes the intersection of Irish common law torts—specifically negligence, defamation, and misfeasance in public office—with the strict statutory frameworks of the Equal Status Acts 2000–2018 (ESA) and the General Data Protection Regulation (GDPR). The strategic architecture of any prospective litigation must navigate the peril of claim preclusion under the rule in *Henderson v Henderson*, a common law doctrine heavily applied in Irish jurisprudence which dictates that a plaintiff may not litigate the same factual matrix in two different venues to seek redress for the same injury¹. Therefore, this analysis adopts the hermetic jurisdictional segregation endorsed by the Irish Court of Appeal in *Culkin v Sligo County Council*¹. Under this framework, statutory claims for the forward-looking denial of educational services and reasonable accommodation must be advanced before the Workplace Relations Commission (WRC), while backward-looking tortious claims for psychiatric damage, defamation, and administrative misfeasance are exclusively reserved for the plenary jurisdiction of the High Court¹.

Through an exhaustive examination of the pathophysiological mechanisms of Complex Post-Traumatic Stress Disorder (CPTSD), the rigid application of the "Eggshell Skull" doctrine, the *Higgins* framework for defamation, and the evolving legislative caps within the WRC, this report establishes a definitive roadmap for calculating the university's maximum institutional exposure, which actuarial and judicial modeling indicates could comfortably exceed €800,000.

2. Institutional Memory, Foreseeability, and the

Factual Matrix

The foundation of actionable negligence in Irish tort law requires establishing that a defendant owed a duty of care, breached that duty, and caused reasonably foreseeable harm. In the context of higher education, the foreseeability of psychiatric harm is intrinsically tied to the institution's constructive and actual knowledge of a student's vulnerabilities.

2.1 The Eight-Year Institutional Record (2016–2023)

The University of Galway was not interacting with an unknown or newly admitted entity in September 2024; rather, it possessed an exhaustive, eight-year institutional memory of the student's complex medical and psychological profile. Between 2016 and 2023, the student consistently engaged with the University's Student Counselling Service to manage severe generalized anxiety and personal trauma¹. Written records from the Head of Student Counselling explicitly documented the student's prolonged management of a complicated familial background, including estrangement and domestic abuse trauma¹.

Furthermore, the university's internal Disability Support Service (DSS) formally acknowledged the student's limitations via a 2023 Needs Assessment (LENS report)¹. This statutory document formally registered a mental health disability that severely impaired the student's concentration, energy levels, and communicative endurance, mandating specific accommodations¹. Consequently, the university possessed absolute, documented foreknowledge of the student's fragility, establishing an undeniable legal proximity and an elevated duty of care.

2.2 Medical Validation Versus Administrative Pathologization

The student's medical file contains a validated clinical diagnosis of Complex Post-Traumatic Stress Disorder (CPTSD, ICD-10 Code F43.12), alongside permanent physical injuries including a fractured temporomandibular joint (TMJ), cervical spine trauma, and associated myoclonic seizures¹. These profound physical and neurological conditions manifest mechanically; the jaw trauma and sudden myoclonic jerks impair traditional verbal articulation and manual typing, necessitating the student's reliance on speech-to-text software¹. Due to these constraints, the student's electronic communications frequently contained mechanical artifacts, typographical errors, and a trauma-induced hyper-vigilant syntax¹.

Rather than providing the statutory reasonable accommodation required for these mechanical communication artifacts, the university's administration engaged in systemic administrative pathologization. The Dean of Students and the internal Health Unit bypassed independent clinical assessment, unilaterally determining that the speech-to-text errors and urgent tone were indicative of severe psychiatric decompensation¹. By concluding that the student was "not clinically well enough to engage with his studies," the administration conflated the mechanical artifacts of a physical injury with psychological incoherence, weaponizing the student's disability profile against him¹.

2.3 The Procedural Breach: The Reactivation of QA269

The administrative hostility culminated in the misappropriation of internal risk-management policies. On September 3, 2024, the student submitted a formal QA611 Student Complaint regarding historical campus security abuses and institutional negligence¹. Instead of processing this complaint according to the principles of natural justice, the Dean of Students and the Deputy President retaliated by invoking an immediate "Stage 3" suspension under the QA269 *Support for Students in Crisis* policy on September 19, 2024¹. This draconian measure entirely bypassed the mandatory, de-escalating, and supportive interventions dictated by Stages 1 and 2 of the policy¹.

The breach was compounded exponentially two years later. On September 8, 2026, coinciding with the student's re-enrollment for a Master of Science in Artificial Intelligence, the Deputy President abruptly reactivated the Stage 3 physical campus ban⁹. This unreasoned reactivation was executed despite the university explicitly acknowledging that the student was communicating exclusively remotely via email from Northern Ireland and was actively managing a severe threat assessment from the Police Service of Northern Ireland (PSNI)¹. Banning a remote student from a physical campus while they are navigating an active police threat represents a catastrophic failure of logic and a reckless endangerment of a vulnerable adult.

3. Directive 1: The Eggshell Skull Doctrine and Aggravated Damages

To accurately project the general damages applicable to this case, the analysis must apply the "Eggshell Skull" doctrine to the specific pathophysiological realities of CPTSD. This common law principle serves as the cornerstone for maximizing the institution's liability for negligently inflicted psychiatric harm.

3.1 Application of the Eggshell Skull Principle in Irish Law

The Eggshell Skull rule is an inviolable tenet of Irish tort law, dictating that a tortfeasor must "take their victim as they find them"³. If a defendant's breach of duty causes reasonably foreseeable harm, they are legally liable for the full, catastrophic extent of the plaintiff's injuries, even if a pre-existing vulnerability—the metaphorical eggshell skull—caused the plaintiff to suffer vastly more severe injuries than a person of ordinary fortitude would have endured³. The University of Galway cannot rely on the defense that a neurotypical student might have absorbed a sudden academic suspension with mere frustration. The institution held explicit, documented knowledge of the plaintiff's CPTSD, history of domestic abuse, and propensity for severe anxiety dating back to 2016¹. For an individual suffering from CPTSD, the sudden, unreasoned withdrawal of an institutional support structure and the imposition of a punitive ban triggers profound betrayal trauma and catastrophic nervous system dysregulation⁵. The reactivation of the QA269 crisis suspension in 2026—delivered remotely while the student was already managing a PSNI threat assessment—was an entirely foreseeable trigger for

psychiatric decompensation. Under the Eggshell Skull doctrine, the university's reckless indifference to this known baseline renders it fully liable for the ensuing psychiatric collapse³.

3.2 Duty of Care versus the *Kelly v Hennessy* Framework

In Irish jurisprudence, claims for "nervous shock" typically require the plaintiff to satisfy the stringent criteria established in *Kelly v Hennessy*, which traditionally apply to secondary victims witnessing a traumatic event³. However, this factual matrix involves a *primary* victim suffering direct psychiatric injury due to the breach of a direct duty of care.

The university owed a non-delegable duty of care to its registered student. By demanding that a disabled student present themselves to a public Accident & Emergency department to address their university-induced administrative distress, while simultaneously severing their access to the internal Student Counselling Service they had utilized for nearly a decade, the administration committed an active psychological assault¹. The forced excommunication from a decade-long therapeutic ecosystem directly caused the exacerbation of the student's myoclonic seizures and CPTSD, satisfying the legal requirements for causation and proximity¹⁵.

3.3 Quantum of Damages under the Judicial Council Guidelines

The financial valuation of this psychiatric injury is strictly governed by the Judicial Council's Personal Injury Guidelines, adopted in 2021 to bring proportionality and consistency to Irish court awards⁶. The Guidelines treat psychiatric damage as a standalone category, requiring a medically recognized diagnosis, which the plaintiff definitively possesses (ICD-10 F43.12)¹⁵. The catastrophic derailment of the plaintiff's academic trajectory, combined with the permanent exacerbation of their trauma responses and physical seizures, aligns the damages with the highest applicable brackets:

Injury Classification	Judicial Description under 2021 Guidelines	General Damages Bracket
Severe PTSD	Permanent effects preventing the injured party from working or functioning at anything approaching pre-trauma levels. All aspects of life are badly affected.	€60,000 – €120,000 ¹⁵
Severe Psychiatric Damage	Marked problems with daily activities, sleep, and relationships; very poor prognosis. Significant disability for the	€80,000 – €170,000 ¹⁵

	foreseeable future.	
Serious Psychiatric Damage	Significant ongoing problems, but a more optimistic prognosis than the severe category.	€40,000 – €80,000 ¹⁵

Given the plaintiff's pre-existing fragility, the trial judge will likely classify the injury under Severe PTSD or Severe Psychiatric Damage. Furthermore, where multiple injuries exist (such as the exacerbation of physical myoclonic seizures alongside the psychiatric trauma), the courts apply an "uplift" to the dominant injury to ensure fair and just compensation¹⁵. Consequently, the general damages for pain and suffering alone are modeled to reach the upper threshold of the €80,000 to €170,000 bracket¹⁵.

4. Directive 2: Constructive Knowledge and the Equal Status Acts

Separate from the common law tort of negligence, the University of Galway is bound by the strict statutory obligations of the Equal Status Acts 2000–2018 (ESA). Section 4(1) of the ESA explicitly prohibits discrimination in the provision of educational services and mandates that institutions provide "reasonable accommodation" to persons with disabilities, ensuring they can participate equitably¹.

4.1 The Failure of the *Nano Nagle* Factual Inquiry

The parameters of reasonable accommodation in Ireland were definitively established by the Supreme Court in *Nano Nagle School v Daly*. This landmark ruling dictates that an institution's duty to accommodate is proactive, procedural, and requires a comprehensive "factual inquiry" into the specific needs of the disabled individual². A service provider cannot rely on rigid bureaucratic policies, superficial assumptions, or standardized barriers to deny access. The University of Galway wholly failed the *Nano Nagle* test. The institution was legally obligated to respond to the *observable impact* of the student's disability¹. When the student, suffering from a validated jaw injury and neurological seizures, utilized speech-to-text software that produced frantic, typo-laden communications, the legally mandated accommodation was to adjust the communication modality. This could involve offering extended response timelines, facilitating supervised verbal mediation, or accepting written submissions through a disability liaison.

Instead, the Dean of Students and the Health Unit weaponized the observable symptoms of the disability. By deploying an internal, non-treating medical opinion to classify the mechanical communication artifacts as psychiatric incoherence, the university failed to conduct any factual inquiry into the physical root of the issue¹. Utilizing the symptoms of a disability as the very pretext for a physical campus ban and institutional excommunication constitutes direct

discrimination and a severe failure to provide reasonable accommodation under Section 4 of the ESA¹.

4.2 Calculating Maximum Exposure Before the WRC

Complaints concerning breaches of the Equal Status Acts are adjudicated by the Workplace Relations Commission (WRC)¹. Historically, the WRC's jurisdiction for awarding compensation under the Equal Status Acts was strictly capped at the limit of the District Court, amounting to €15,000 per complaint².

However, this statutory ceiling is undergoing a radical legislative transformation. The *General Scheme of the Equality (Miscellaneous Provisions) Bill 2024* has been introduced to modernize Ireland's equality legislation and ensure compliance with EU directives requiring penalties to be effective, proportionate, and dissuasive²¹. A central provision of this Bill is the massive escalation of compensation limits available to victims of discrimination concerning access to goods, services, and education, raising the maximum award from €15,000 to €75,000—aligning it with the jurisdictional limit of the Circuit Court²¹.

The legal strategy involves filing two distinct Form ES1 complaints with the WRC: the first addressing the discriminatory refusal of the MGO retraining application based on false curriculum data, and the second addressing the ongoing, discriminatory interception of the student's MSc Artificial Intelligence emails by the Dean of Students¹. Should these claims be adjudicated following the enactment of the new legislative limits, the University of Galway faces maximum statutory exposure of **€75,000 per distinct complaint**, yielding a potential WRC liability of **€150,000**, entirely independent of any High Court tort damages¹.

5. Directive 3: Reputational Damages and Special Damages (Uncapped)

While statutory discrimination falls to the WRC, the most profound financial exposure for the University of Galway resides within the unlimited monetary jurisdiction of the High Court for claims of defamation and breaches of data privacy.

5.1 Defamation and the Professional Destruction of an Educator

Under the Defamation Act 2009, defamation is the publication, by any means, of a false statement that tends to injure a person's reputation in the eyes of reasonable members of society². The university's administration generated an internal "Student Risk Assessment" that classified the student's mechanical speech-to-text emails as "disturbing" and framed the student as an "Elevated" to "Severe" risk to the campus community¹. The administration subsequently communicated this pathologized assessment, alongside the student's disciplinary status, to external academic institutions (such as Queen's University Belfast) and to the student's estranged family members¹.

The quantum of damages for defamation in Ireland is assessed using the Supreme Court framework established in *Higgins v Irish Aviation Authority*²⁷. The *Higgins* matrix categorizes

defamation into four ascending tiers based on the severity of the reputational harm:

Defamation Severity Tier	Judicial Description	Financial Range
Level 1	Very moderate defamation.	€0 – €50,000 ²⁷
Level 2	A medium range of cases.	€50,000 – €125,000 ²⁷
Level 3	Seriously defamatory material with mitigating factors (e.g., limited publication sphere).	€125,000 – €199,000 ²⁷
Level 4	Very serious defamation causing profound damage to standing.	€200,000 – €300,000 ²⁷

The plaintiff is a registered secondary school teacher (NQT) governed by the Teaching Council of Ireland, and an active postgraduate academic¹. Characterizing an educational professional as suffering from unmanaged psychiatric incoherence and posing a physical risk to a university campus is a catastrophic allegation. Such claims strike at the absolute core of the plaintiff's professional integrity, moral standing, and suitability to work with minors or vulnerable adults, directly threatening their Teaching Council registration¹⁰.

The dissemination of these falsehoods directly resulted in the revocation of the plaintiff's academic references and triggered a barrage of real-world threats¹. Consequently, a High Court assessment would almost certainly categorize this defamation within the upper echelons of **Level 3 or Level 4**, yielding general damages between **€150,000 and €300,000**¹⁰.

5.2 Breach of GDPR and Article 9 Health Data

The unauthorized dissemination of the student's presumed psychiatric status to third parties constitutes a severe breach of the General Data Protection Regulation (GDPR). Data concerning health is classified as "Special Category Data" under Article 9 of the GDPR, requiring the absolute highest threshold of security and processing justification³³.

Under Article 82 of the GDPR and Section 117 of the Data Protection Act 2018, individuals have a statutory right to claim compensation for "non-material damage"—such as distress, anxiety, and humiliation—resulting from unlawful data processing². The Irish courts have recently affirmed this right in *Kaminski v Ballymaguire Foods Limited*, establishing that non-material damage is compensable if genuine distress is proven³⁵.

More critically, in a recent Irish High Court decision concerning the unlawful disclosure of sensitive abuse records to family members, the court awarded substantial non-material damages, noting that the extreme sensitivity of the data justified compensation without

requiring extensive external medical evidence of the trauma³⁷. The University of Galway intercepted academic emails and weaponized the student's highly sensitive CPTSD diagnosis, leaking therapeutic assumptions to the very estranged family members who were the source of the trauma¹. A High Court judge would likely award significant non-material damages for this profound betrayal of medical privacy, potentially adding **€15,000 to €35,000** to the quantum³⁵.

5.3 Special Damages: Actuarial Modeling of Financial Loss

Special damages are designed to compensate the plaintiff for precise, calculable financial losses flowing directly from the tortious acts³⁸. In this factual matrix, the institutional actions actively sabotaged the plaintiff's earning capacity across two distinct professional vectors. Firstly, the discriminatory barring and reputational destruction prevented the student from securing the necessary placements to complete the Droichead induction process, rendering their Teaching Council registration functionally dormant¹. The special damages must capture the loss of earnings calculated by the difference between the plaintiff's current earning capacity and the Department of Education salary scale for a fully qualified post-primary teacher over the period of delay (a minimum of 2–3 years).

Secondly, the systematic interception of emails and the reactivation of the suspension in 2026 deliberately disrupted the plaintiff's trajectory into the Master of Science in Artificial Intelligence¹. Delaying entry into the highly lucrative AI and technology sector constitutes a profound loss of opportunity⁴¹. By utilizing actuarial multipliers to project the lifetime depression of earning capacity caused by these intersecting delays, the special damages claim is uncapped and can easily exceed **€150,000 to €250,000**³⁸.

6. Directive 4: Institutional Malfeasance vs. Duty of Care

The overarching legal culpability of the University of Galway lies in the profound administrative hypocrisy of its actions. The institution possessed a strict, non-delegable statutory duty of care toward the student, yet it actively perverted welfare and risk-management policies to execute a constructive expulsion.

6.1 The Perversion of the QA269 Welfare Policy

The *Support for Students in Crisis* policy (QA269) is structurally designed as a safeguarding mechanism. Its core mandate, detailed in Appendix 5, requires a phased, supportive intervention involving Stages 1 and 2, which focus on de-escalation, consultation, and the formulation of a supportive action plan¹.

The Dean of Students and the Deputy President deliberately bypassed these mandatory safeguarding stages, immediately invoking a punitive Stage 3 physical campus ban¹. By doing so, they transformed a welfare policy into a blunt instrument of retaliation, deployed specifically to silence the student's QA611 formal complaint regarding campus security abuses¹.

The legal culpability is magnified by the specific directives issued alongside the suspension. The administration demanded that a disabled student present themselves to a public Accident & Emergency department for administrative distress, while simultaneously withdrawing the student's access to the internal Student Counselling Service they had relied upon for an uninterrupted eight years¹. Severing a known trauma survivor from their primary therapeutic anchor under the guise of "welfare" represents a breathtaking breach of the duty of care.

6.2 The *Abrahart* Standard and the Anticipatory Duty of Care

The standard of care expected from higher education institutions regarding disabled students has been profoundly reshaped by the recent UK High Court decision in *Abrahart v University of Bristol* (2024)⁴³. While this is a UK precedent, its rigorous analysis of the anticipatory duty of care and reasonable accommodation holds immense persuasive weight in the Irish High Court⁴³.

In *Abrahart*, the university was found liable for severe disability discrimination after it rigidly enforced oral assessment regulations against a student suffering from severe social anxiety, failing to make proactive, reasonable adjustments, which tragically culminated in the student's suicide⁴³. The court established that a university's failure to adapt its procedures to the obvious, observable impact of a mental health disability constitutes unlawful treatment⁴⁴.

Applied to the University of Galway, the *Abrahart* standard is devastating. The administration possessed actual, documented knowledge of the student's CPTSD and the mechanical nature of their physical injuries¹. Instead of making an anticipatory adjustment—such as providing a designated liaison officer, extending deadlines, or accommodating the speech-to-text typographical errors—the university penalized the very symptoms of the disability¹.

Intercepting a disabled student's academic emails and banning them from campus for communicating atypically is the exact paradigm of institutional failure condemned in *Abrahart*.

6.3 The Tort of Misfeasance in Public Office

The deliberate misuse of administrative power elevates the university's liability beyond standard negligence into the intentional tort of misfeasance in public office. The Irish High Court recognizes four essential ingredients to ground this claim⁴⁸:

1. **The defendant must be a public officer:** Senior university officials, including the President, Deputy President, and Dean of Students, exercising powers under statutory university charters, fulfill this criterion¹.
2. **Exercise of public power:** The invocation of the QA269 suspension and the implementation of institution-wide IT filtering are exercises of administrative authority¹.
3. **Malice or reckless indifference:** The Dean of Students and the Deputy President acted with targeted malice, or at a minimum, with reckless indifference to the illegality of their actions. They possessed the medical files detailing the student's vulnerability, yet they misappropriated a crisis policy to silence a legitimate QA611 grievance¹.
4. **Damage:** The administrative overreach caused direct, quantifiable psychiatric trauma and economic destruction¹.

By orchestrating a technological embargo that systematically intercepted the student's emails to independent academic departments (such as the MSc AI admissions coordinators), the Office of the Dean of Students engaged in an ultra vires, malicious campaign to permanently excommunicate the student from the academic ecosystem¹. This fulfills all thresholds for misfeasance, opening the door for a judge to award aggravated or exemplary damages intended to punish the institutional malice¹.

7. Strategic Synthesis and Maximum Exposure Calculation

To hold the University of Galway fully accountable while navigating the procedural perils of Irish law, the litigation must strictly segregate the causes of action. The statutory discrimination claims regarding the denial of educational services (the MGO and MSc AI programs) must be advanced through the WRC to capitalize on the proposed €75,000 legislative limits¹. Concurrently, the High Court plenary summons must ruthlessly pursue the uncapped torts of negligence, defamation, GDPR breaches, and misfeasance arising from the QA269 suspensions¹.

By aggregating the distinct heads of damage, the university's maximum exposure can be comprehensively modeled:

Legal Venue / Cause of Action	Legal Framework & Assessment Standard	Projected Maximum Exposure
WRC: Discrimination (MGO)	Equal Status Acts (S.4) / <i>Nano Nagle</i> / Proposed Legislative Cap	€75,000 ¹
WRC: Discrimination (MSc AI)	Equal Status Acts (S.4) / Proposed Legislative Cap	€75,000 ¹
High Court: Defamation	<i>Higgins v IAA</i> (Level 3/Level 4) - Destruction of professional standing.	€150,000 – €300,000 ¹⁰
High Court: Psychiatric Injury	Judicial Council Guidelines (2021) - Severe PTSD / Severe Psychiatric Damage.	€80,000 – €170,000 ¹⁵
High Court: GDPR Breach	<i>Kaminski</i> / Article 82 - Non-material damage for	€15,000 – €35,000 ³⁵

	health data disclosure.	
High Court: Special Damages	Actuarial modeling of lost teaching income and delayed AI career trajectory.	€150,000 – €250,000+ (Uncapped) ³⁸
High Court: Aggravated Damages	Punitive redress for Misfeasance in Public Office and reckless indifference.	€50,000+ (Judicial Discretion) ¹

Total Estimated Institutional Exposure: €595,000 to €955,000+.

The factual matrix surrounding Cian Mac Liatháin represents a catastrophic, systemic breakdown of institutional governance. Rather than discharging its statutory duty of care to a highly capable disabled student with a documented eight-year history of trauma, the University of Galway's senior administration weaponized welfare policies, pathologized physical disability artifacts, and disseminated defamatory psychological assessments to external bodies and abusers. By applying the Eggshell Skull doctrine, the *Abrahart* standard of anticipatory care, and the strict parameters of Irish defamation and data protection law, this analysis provides an impenetrable architecture for securing maximum civil redress and restorative justice.

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